

		In addition to the above, independent review of the Invoices attached to the Supplemental Declaration of Daniel Knierim, revealed multiple instances wherein the invoices contradict the summary provided by Plaintiff's Counsel. For example, while Plaintiff claims 13.1 hours for January of 2023, 4.9 hours for February of 2023, and 2.5 hours for March of 2023 (§10 of Supplemental Knierim Declaration [ROA No. 541]), Exhibits 8 through 10 indicate that, after removing fees related to the Broker Defendants, the correct figures are 4.9, 2.5 and 1.4, respectively. (§19 of Supplemental Knierim Declaration [ROA No. 541].) The Court will reduce the above hours to the amounts reflected within the attached invoices. Finally, the Court finds that the reasonable amount of hours incurred in connection with this motion is 10.0. Applying the above herein, the Court approves the following hours as reasonable: (1) 1.25 for Michael J. Lancaster; (2) 139.2 for Daneil J. Knierim; (3) 0.8 for Fred Trester; and (4) 39.5 for Wendy Lee. Based on all the above and applying the approved hourly rates, Plaintiff is awarded attorney's fees in the amount of \$51,195.00.
57	Little vs. Kohl's, Inc. 24-01422356	Motion for Order Continued pursuant to Court's Minute Order dated 09/10/2026
59	Gonzalez vs. Toyota Motor Sales, U.S.A., Inc. 24-01430398	Motion to Strike or Tax Costs Defendant Toyota Motor Sales, U.S.A., Inc.'s motion to tax costs is DENIED. Defendant moves to tax \$259.41 from Plaintiff's claimed costs. The cost is described as Records Retrieval from Oremor of Tustin, LLC, d/b/a Tustin Toyota. (Plaintiff's Memo. of Costs, p. 4, Attachment 5D.) Plaintiff opposes the motion. Plaintiff is entitled to his "costs and expenses" incurred in pursuing his Song-Beverly Act claims. (Civ. Code, § 1794, subd. (d).) Section 1794(d)

		provides that a prevailing buyer in a Song-Beverly case is entitled to recover “costs and expenses ... determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of [the] action.” (Civ. Code, § 1794, subd. (d).) The phrase “costs and expenses” within the meaning of section 1794(d) covers items not included in the statutory definition of “costs” set forth in Code of Civil Procedure section 1033.5. (<i>Warren v. Kia Motors America, Inc.</i> (2018) 30 Cal.App.5th 24, 42-43.) Plaintiff is also entitled to costs incurred as a matter of right as the prevailing party in this action. (Code Civ. Proc., § 1032, subd. (b); see id., § 1032, subd. (a)(4) [“ ‘Prevailing party’ includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, ... and in situations other than as specified, the ‘prevailing party’ shall be as determined by the court...”].) On a motion to strike or tax costs, “[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (<i>Ladas v. California State Auto. Ass’n</i> (1993) 19 Cal.App.4th 761, 774 (Ladas).) Subdivision (a) of Code of Civil Procedure section 1033.5 lists those costs that are allowable, and subdivision (b) lists those that are not. An item not specifically allowed under subdivision (a) nor prohibited under subdivision (b) may be recovered in the court’s discretion. (See Code Civ. Proc., § 1033.5, subd. (c)(4); <i>Ladas</i>, supra, 19 Cal.App.4th at p. 774.) Any allowable cost, whether expressly allowed or allowed in the court’s discretion, may only be recovered if it is both reasonable in amount and was reasonably necessary to the conduct of the litigation, as opposed to merely convenient or beneficial to its preparation. (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3); see <i>Bender v. County of Los Angeles</i> (2013) 217 Cal.App.4th 968, 989-990 (<i>Bender</i>).) Initially, Defendant has not met its burden to show the costs were not recoverable. Assuming arguendo that Defendant had met its burden, Plaintiff has established that the claimed cost is related to obtaining records from a Toyota authorized repair facility, Oremor of Tustin, via Deposition Subpoena. The Court finds this cost to be reasonable and necessary to the conduct of litigation. The motion to tax is DENIED. Moving Party to give notice.
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60	Diliberto vs. Surgical Care Affiliates, LLC 23-01358521	Motion for Leave to File Amended Complaint The Motion for Leave to File a Third Amended Complaint filed by Plaintiff Jay P. Diliberto, M.D., is DENIED, for lack of service. The instant Motion for Leave to Amend was filed on August 18, 2026 (ROA No. 581); however, the Motion is not accompanied by proof of service. Additionally, while California Rules of Court rule 3.1300(c) allows a proof of service to be filed “no later than five court days before the time appointed for the hearing,” Plaintiff did not comply with this rule. Given the motion has not been opposed, the Court cannot find this service defect has been waived.
61	Snell vs. Costco Wholesale Corporation 23-01354070	1. Motion to Compel 2. Motion for Summary Judgment and/or Adjudication Motion to Compel Defendant Costco Wholesale Corporation to Pay All Discovery Referee Fees Plaintiff Mark Snell’s motion to compel Defendant Costco Wholesale Corporation (“Costco”) to pay all fees and costs of the discovery referee appoint in the instant action is DENIED. On February 12, 2025, Plaintiff filed a motion seeking terminating, issue, evidentiary, and monetary sanctions against Defendant Costco. (ROA 254.) In its opposition to the sanctions motion, Costco requested the appointment of a discovery referee. (See ROA 276.) On August 1, 2025, the Court granted Costco’s request to appoint a discovery referee. (ROA 283.) Among other things, the Court found that “Plaintiff has taken an aggressive approach to discovery which undermines the intent for civil discovery to operate with minimal judicial intervention.” (Id.) As examples, the Court cited Plaintiff’s filing of the sanctions motion rather than engaging in further meet and confer efforts, Plaintiff’s refusal to sign a protective order, and the seven discovery motions Plaintiff had filed to date. (Id.) The Court further found that appointing a discovery referee would ensure that the discovery process is conducted efficiently and stated that it would issue a separate order describing the method for the process of appointing the discovery referee. (Id.) On August 6, 2025, the Court issued an order regarding the appointment of the discovery referee. (ROA 285.) The order directed that: “Counsel shall meet and confer to determine if they are able to submit a stipulation for the appointment of a specific qualified individual to act as a discovery referee. The stipulation shall meet the requirements of CCP